

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF AUTOMATIC STAY
(CCP 916; Varian)**

Hearing: September 8, 2026
Time: 9:00 a.m.
Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and California Constitution, article I, sections 3 and 16.
2. This Notice is filed under Code of Civil Procedure sections 916 and 1010; California Rules of Court, rules 2.100 through 2.111, 2.256, 2.257, 3.1110, and 3.1300; and Government Code sections 68150 and 69845.

- 1 3. The Clerk’s authority to accept this paper is under Government Code sections 68150 and
2 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
3 2.257. Rejection is limited to the enumerated technical grounds in rules 2.118 and 2.119; this
4 paper does not present any of those grounds.
- 5 4. This Notice gives notice that, upon perfecting the appeal from the anti-SLAPP order entered
6 August 6, 2026 (including review of the August 11, 2026 reconsideration denial under Code
7 of Civil Procedure section 1008, subdivision (g)), further trial-court proceedings on matters
8 embraced in or affected by the appealed order are stayed by operation of law.

9
10 TO THE HONORABLE COURT, TO THE CLERK, AND TO ALL PARTIES AND THEIR AT-
11 TORNEYS OF RECORD:

12 **I. NOTICE OF PERFECTED APPEAL**

13 Plaintiff Franciscus Dylan Rosario hereby gives notice that he has filed a Notice of Appeal from the
14 order granting Defendants’ special motion to strike under Code of Civil Procedure section 425.16,
15 as **entered August 6, 2026** (DocID **10361462**), including the **August 11, 2026** Department 301
16 minute order and mini minutes denying reconsideration (minutes only; no written-order DocID
17 on the August 12 Register of Actions; proposed order directed to the prevailing party and not yet
18 posted; reviewable under Code of Civil Procedure section 1008, subdivision (g)).

- 19 1. **Filing.** The Notice of Appeal is dated **August 14, 2026** and was filed on **August 14, 2026**, via
20 File & ServeXpress under transaction ID **80347363** (approximately 2:40 p.m. PDT). Plaintiff
21 requests that the Court take judicial notice of, and take notice of, that filed Notice of Appeal
22 already on the electronic docket in this action. No Exhibit A is attached.
- 23 2. **Appellate destination.** California Court of Appeal, First Appellate District. Appellate case
24 number: TBA (to be assigned).
- 25 3. **Appealability.** An order granting or denying a special motion to strike is appealable as of
26 right. (Code Civ. Proc., §§ 425.16, subd. (i), 904.1, subd. (a)(13).) An order denying
27 reconsideration of an appealable order is reviewable on appeal from the underlying order.
28 (Code Civ. Proc., § 1008, subd. (g).)

1 4. **Sequencing.** Filed after the Notice of Appeal (File & ServeXpress Tx **80347363**) under
2 the Friday 2026-08-14 filing sequence (A-1 first, then A-2, then this B-2), and before the
3 September 8, 2026 hearing line, to give the department notice of the automatic stay.

4 **II. AUTOMATIC STAY UNDER SECTION 916 AND *VARIAN***

5 Code of Civil Procedure section 916, subdivision (a), provides that, except as otherwise provided,
6 “the perfecting of an appeal stays proceedings in the trial court upon the judgment or order ap-
7 pealed from or upon the matters embraced therein or affected thereby, including enforcement of
8 the judgment or order, but the trial court may proceed upon any other matter embraced in the action
9 and not affected by the judgment or order.”

10 In *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, the Supreme Court held that an
11 appeal from an order granting an anti-SLAPP motion stays further trial-court proceedings on the
12 merits of the claims affected by that order. The stay is automatic upon perfecting the appeal; it
13 does not depend on a separate discretionary stay order. (*Varian*, 35 Cal.4th at 189-191, 198-201.)
14 The test is whether the post-appeal proceeding would interfere with the appellate court’s jurisdic-
15 tion, or whether the matter is “embraced in or affected by” the appealed order. (*Varian*, 35 Cal.4th
16 at 189-190; Code Civ. Proc., § 916, subd. (a).)

17 **III. SCOPE OF THIS NOTICE (PRECISE)**

18 Plaintiff hereby gives notice that the following September 8, 2026 matters are embraced in or
19 affected by the appealed anti-SLAPP order entered August 6, 2026 (DocID 10361462), and are
20 therefore stayed under section 916 and *Varian*:

21 **A. CCP 425.16(C) FEE MOTION (\$37,110.46)**

22 Defendants’ motion for attorney fees and costs under Code of Civil Procedure section 425.16,
23 subdivision (c), served on or about August 11, 2026, and ROA-confirmed under Tx **80309587**
24 (DocIDs **10369670** notice, **10369671** O’Connell declaration, **10369673** MPA; hearing September
25 8, 2026, 9:00 a.m., Department 301), demands **\$35,973.00** in attorney fees and **\$1,137.46** in costs,
26 for a total of **\$37,110.46**, on behalf of CSAA Insurance Exchange, Carbone Smith & Koyama, and
27 Michael R. Chambers.

1 That motion rests entirely on the premise that the moving defendants are prevailing parties on the
2 special motion to strike. That prevailing-party status is the direct product of the appealed August
3 6 entered order (and of the May 12, 2026 ruling as entered). Adjudicating fees while the appeal
4 is pending would require the trial court to treat as final the very order under appellate review and
5 would interfere with the Court of Appeal’s jurisdiction over that order. (*Varian*, 35 Cal.4th at
6 189-191.)

7 Any fee award under section 425.16(c) falls with reversal of the underlying anti-SLAPP order.
8 Proceeding to award fees now is therefore a proceeding “upon the matters embraced therein or
9 affected thereby.” (Code Civ. Proc., § 916, subd. (a).)

10 **B. MEMORANDUM OF COSTS (MC-010)**

11 Defendants’ claimed concurrent Memorandum of Costs (Judicial Council form MC-010), claiming
12 **\$1,137.46** (approximately \$1,064.95 filing/motion fees and \$72.51 service of process per served
13 papers / decl-MPA concurrent-filing claim), is likewise predicated on prevailing-party status arising
14 from the appealed anti-SLAPP order. That MC-010 is **not separately docketed** as an ROA DocID
15 among Tx 80309587 sequences 201-203 (do not invent a DocID). Cost proceedings that depend
16 on that order are embraced in or affected by it for section 916 purposes.

17 Plaintiff separately preserves all objections to the MC-010, including prematurity if no judgment
18 of dismissal has been entered, duplication of the same costs inside the noticed fee motion, and
19 item-level challenges under California Rules of Court, rule 3.1700(b). Those objections remain
20 preserved by this stay notice.

21 Calendar management and other matters outside the stayed scope identified in A and B remain with
22 the department. If the Court concludes that the September 8 fee hearing or MC-010 proceedings are
23 not automatically stayed, Plaintiff requests that the Court so state on the record and that Plaintiff be
24 heard on the fallback application to stay or continue (Packet Doc B-3), lodged or filed as needed.

25 **IV. RELIEF / REQUESTED COURT ACTION**

26 Plaintiff respectfully requests that the Court:

- 27 1. **Take judicial notice of / take notice of** the Notice of Appeal already filed in this action on
28 August 14, 2026, via File & ServeXpress transaction ID **80347363**, from the anti-SLAPP

1 order entered August 6, 2026 (DocID 10361462), including the August 11, 2026 reconsider-
2 ation denial under section 1008(g);

3 2. **Recognize** that further proceedings on the CCP 425.16(c) fee motion (\$37,110.46) and on the
4 accompanying MC-010 are automatically stayed under Code of Civil Procedure section 916
5 and *Varian*;

6 3. **Take the September 8, 2026 fee hearing off calendar or continue it** pending disposition of
7 the appeal, without prejudice to resetting after remittitur if appropriate;

8 4. **Decline to enter** any fee or cost award premised on treating the August 6 order as final while
9 the appeal is pending; and

10 5. Grant such other and further relief as the Court deems just and proper.

11 **V. PRESERVATION**

12 By this Notice, Plaintiff preserves all objections to any hearing, argument, or order on the fee mo-
13 tion or MC-010 while the automatic stay is in effect. Participation in any hearing under protest,
14 filing of a fee opposition to avoid an “unopposed” claim, or filing of a fallback continuance appli-
15 cation, is without waiver of the section 916 / *Varian* stay.

16
17 Dated: August 14, 2026

18 

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20 Plaintiff, In Pro Per

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